

23PR00055 Estate of Sharon Ann Schulte

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-08-19

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Sharon Ann Schulte

Case Number

23PR00055

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 08/19/2026 - 09:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Service of Notice of Hearing (Form DE-120). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 11601 & 1220.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed.

Supplement re: Escrow Statement. Real property was sold, but no Escrow Statement is on file. The escrow statement is a requisite filing to satisfy the final report requirements of the Probate Code (Prob. Code, § 10954(c)(1)), and the California Rules of Court (Rule 7.550):

Allegations of all actions taken under IAEA, including:

sales, purchases, or exchanges of assets (CRC, Rule 7.550(b)(2))

changes in the form of assets (CRC, Rule 7.550(b)(3))

assets on hand (CRC, Rule 7.550(b)(4))

a list of costs of administration, IF reimbursement of administration costs is requested (CRC, Rule 7.550(b)(7))

a list of the amount of any fees or commissions paid or to be paid (CRC, Rule 7.550(b)(8)), and the calculation of such fees or commissions as described in CRC, Rule 7.705(b) (CRC, Rule 7.550(b)(9))

The requirements of Rule 7.550(b) mandate an escrow statement for any sale of real property must be submitted in support of the final report.

Proposed Order. A proposed order must be submitted with relief that matches that requested in the petition. (Local Rule 1724(b), subd.(d).) Order must list every beneficiary and detail the shares to each, and must expressly state limitations or conditions on distribution. (Prob. Code, § 11603.) IF whereabouts of a distributee are unknown, the Proposed Order must provide for alternate distributees, and detail the share to which they are entitled per PC § 11603(c). It is highly recommended petitioner use Local Form SC-6029. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on August 17, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Patricia Kelly

SM Dept 1

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